

**HUMAN RESOURCES
POLICY DOCUMENT**

EMPLOYMENT TERMS

Hiring Rules | Probation | Confirmation | Employment Types

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This document is the definitive HR reference for all employment-related matters — from the moment a vacancy is identified through to the ongoing employment relationship. It covers hiring rules, probationary standards, confirmation processes, and all forms of employment engagement.

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1. Purpose & Scope

1.1 Purpose

This Employment Terms Policy establishes a comprehensive, consistent, and legally compliant framework for all matters relating to how people join, work within, progress through, and are governed by their employment relationship with the organization. It is designed to answer every question an employee, manager, recruiter, or HR professional might have about the rules and standards that govern employment at every stage.

This policy exists for three reasons. First, it protects employees by ensuring they know their rights, entitlements, and obligations before and after they join. Second, it protects the organization by ensuring that employment decisions are made consistently, fairly, and in accordance with applicable law. Third, it protects the employment relationship itself — ambiguity and inconsistency are among the most common causes of workplace grievances, and this document is designed to eliminate both.

1.2 Scope

This policy applies to all individuals engaged by the organization in any employment capacity, including but not limited to:

- Full-time permanent employees
- Part-time permanent employees
- Fixed-term contract employees
- Temporary staff (directly hired)
- Interns and trainees
- Apprentices
- Independent contractors (where applicable employment law provisions apply)

Specific provisions may vary by employment type, geography, or business unit where noted. Where this policy conflicts with an applicable law or regulation, the law or regulation prevails. Where this policy provides for rights in excess of the legal minimum, this policy applies.

Important Note

Nothing in this policy supersedes the terms of an individual's signed employment contract. In cases of conflict between this policy and a specific contractual provision, the employee should raise the matter with HR within 30 days of identifying the discrepancy.

2. Recruitment & Hiring Rules

2.1 The Principle of Fair and Structured Hiring

Hiring is the most consequential decision a manager makes. A single hiring error can cost the organization significantly in financial terms, team cohesion, client trust, and cultural integrity. Equally important: a single unjust hiring decision can derail a candidate's career. Both stakes require us to approach hiring with rigour, structure, and integrity.

Our hiring framework is governed by the principle of structured, evidence-based assessment. We do not hire based on intuition, familiarity, or cultural comfort. We hire based on demonstrated competencies, assessed through consistent processes applied equally to every candidate.

2.2 When a Vacancy Is Created

A vacancy may arise through resignation, termination, promotion, business growth, or new function creation. The following process applies:

1. **Business Justification:** The hiring manager submits a Headcount Request Form (HRF) to their Department Head, explaining the business need, anticipated impact, and proposed role scope.
2. **Budget Confirmation:** HR and Finance confirm that the position is within approved headcount budget. No recruitment activity may commence before this confirmation.
3. **Job Description Development:** HR works with the hiring manager to finalize a Job Description (JD) that includes: role title, reporting line, key accountabilities, required competencies, and compensation band.
4. **Job Posting Approval:** The JD is reviewed and approved by HR before posting to ensure compliance with equal opportunity requirements and internal classification standards.
5. **Internal-First Posting:** All vacancies must be posted internally for a minimum of 5 business days before being listed externally. This supports our internal mobility commitment.

2.3 Sourcing Channels

Channel	Guidelines
Internal Mobility Board	First-preference channel. All permanent roles posted here for 5 days minimum.
Company Career Page	Primary external channel. All external openings listed here.

LinkedIn & Job Boards	Used for mid-to-senior roles and specialized functions. Managed by Talent Acquisition.
Employee Referrals	Active referral program with financial incentive for successful hires. Subject to anti-nepotism rules.
Recruitment Agencies	Used only when internal/direct sourcing is exhausted. Requires HR approval and signed agency agreement.
Campus Recruitment	Annual programme for graduate and internship hiring. Managed by HR Talent team.

Anti-Nepotism Rule

Employees may not refer candidates with whom they have a personal relationship (family members, romantic partners, or close personal friends) without declaring the relationship to HR. All such referrals are subject to independent assessment by a panel that does not include the referring employee. The referring employee may not participate in any hiring decision for their referred candidate.

2.4 The Interview Process

We use a structured multi-stage interview process for all roles. The process is designed to gather consistent, comparable evidence about each candidate's competencies. All interviewers are trained on structured interviewing techniques and unconscious bias before conducting interviews.

Stage	Description
Stage 1: Application Review	HR screens applications against minimum criteria. Decision within 5 business days.
Stage 2: Telephonic/Video Screening	30-minute HR call. Culture fit, motivation, role understanding, and compensation alignment.
Stage 3: Technical / Functional Assessment	Role-specific skill assessment. May be a case study, technical test, or work sample.
Stage 4: Competency-Based Interview	Structured interview using the STAR method (Situation, Task, Action, Result).
Stage 5: Final / Senior Panel Interview	Panel of 2+ interviewers including the hiring manager and one cross-functional interviewer.
Stage 6: Reference Check & BGV	Two professional references checked. Background verification initiated.

Deviating from this process requires written approval from the HR Business Partner and must be documented. Informal 'hiring conversations' that bypass this framework are not permitted and any resulting verbal commitments are not binding on the organization.

2.5 Interview Conduct Standards

All interviewers must adhere to the following standards:

- Ask only questions related to job-relevant competencies.
- Never ask questions about marital status, family plans, religion, caste, age, or national origin.
- Score each candidate on the predefined rubric independently before discussing with the panel.
- Provide written interview notes within 24 hours of the interview.
- Decline to interview candidates with whom they have a personal relationship.

Real-World Example: Why Structure Matters in Hiring

In 2021, a hiring manager in our operations team made an informal offer to a candidate he had interviewed alone, based on his 'gut feeling.' The candidate accepted before a background check was conducted. The check revealed a significant discrepancy in the candidate's stated qualifications. The subsequent withdrawal of the offer created a legal and reputational risk. Following this incident, the organization mandated that no offer letter could be issued without sign-off from HR and completion of all assessment stages.

2.6 Hiring Decision & Approval Authority

Hiring decisions require approval at the following levels:

Role Level	Approval Required
Individual Contributor (IC)	Approved by: Department Head + HR BP
Team Lead / Senior IC	Approved by: Director + HR BP
Manager / Senior Manager	Approved by: VP + HR Director
Director and above	Approved by: CHRO + CEO (or delegate)

No recruitment can proceed to offer stage without written approval at the appropriate level. This protects the organization from unauthorized commitments and ensures that senior roles receive appropriate strategic scrutiny.

3. Background Verification & Reference Checks

3.1 Purpose and Scope of Verification

Background Verification (BGV) is a mandatory pre-employment step for all roles. It protects the organization, its clients, and its employees from risks associated with misrepresentation, fraud, and undisclosed conduct that may be material to a candidate's fitness for the role.

3.2 Standard BGV Components

Component	Description
Identity Verification	Government-issued ID verification confirming the candidate's legal identity.
Educational Qualification Check	Verification of claimed degrees, certifications, and institutions with the issuing bodies.
Employment History Check	Confirmation of previous employers, dates of employment, and roles held.
Criminal Record Check	Conducted in accordance with local law. Requires explicit candidate consent.
Credit Check	Required for roles with financial responsibility. Subject to regulatory compliance.
Professional Reference Check	Minimum two professional references, including at least one direct manager.

3.3 Enhanced BGV for Sensitive Roles

Roles with access to sensitive data, financial systems, or vulnerable populations require enhanced verification, which may include:

- Social media screening (professional conduct review, not personal life surveillance).
- Directorship and conflict of interest check.
- Drug and substance screening (where legally permitted and role-relevant).
- Enhanced criminal record check (including international, where applicable).

3.4 Handling BGV Discrepancies

If a BGV reveals a discrepancy between a candidate's stated information and verified facts, HR will:

6. Notify the candidate in writing, specifying the discrepancy.

7. Allow the candidate 5 business days to provide explanation or supporting documentation.
8. Convene a review panel of HR and the hiring manager to assess materiality.
9. Make a final determination: proceed, withdraw offer, or escalate for legal review.

Important: Conditional Employment

All employment offers issued before BGV completion are conditional. The offer letter will specify this condition explicitly. The employment relationship does not become unconditional until the organization receives a satisfactory BGV report.

3.5 Reference Check Standards

Reference checks are conducted by HR, not by hiring managers. This ensures objectivity and reduces the risk of leading questions. References are asked about:

- The candidate's key strengths and areas for development.
- Reliability, professional conduct, and relationship with colleagues.
- Eligibility for rehire (and reasons if ineligible).
- Any performance management actions during the candidate's tenure.

Reference information is treated as confidential and shared only within the hiring team on a need-to-know basis.

4. Offer of Employment

4.1 The Offer Letter

The formal Offer Letter is the organization's written commitment to engage the candidate on the terms stated within it. No verbal commitment — by any person, regardless of seniority — constitutes a binding employment offer. Only a signed, countersigned offer letter creates a binding obligation.

The offer letter must include the following elements:

- Full legal name of the candidate and the employing entity.
- Proposed role title, reporting line, and primary work location.
- Employment type (full-time, part-time, fixed-term, internship — see Section 6).
- Commencement date.
- Compensation: gross annual salary, pay frequency, and any applicable variable components.
- Probationary period duration and conditions.
- Standard working hours.
- Key conditions (BGV satisfactory completion, document submission, medical fitness where applicable).
- Expiry date of the offer (typically 5 business days from issue).

4.2 Offer Acceptance

The candidate must return a signed copy of the offer letter within the stated expiry period. Digital signatures are accepted. Verbal acceptance does not constitute formal acceptance.

4.3 Offer Withdrawal

The organization reserves the right to withdraw a conditional offer if:

- BGV reveals material misrepresentation.
- The candidate fails to produce required documentation by the joining date.
- A material change in business circumstances occurs (e.g., role is eliminated due to restructuring).
- The candidate provides false information at any stage of the hiring process.

Offer withdrawal is a serious step and must be approved by the HR Director. The rationale must be documented. The candidate will be notified in writing.

Real-World Example: Offer Withdrawal — A Lesson in Process

A candidate was offered a senior finance role. The offer was issued before the BGV was completed, as the hiring manager wanted to move quickly. The BGV revealed that the candidate's claimed CPA qualification had never been obtained. The offer was withdrawn. The case reinforced the policy that no role requiring a professional qualification may issue an offer letter before qualification verification is complete.

4.4 Negotiation & Offer Revision

Candidates may negotiate within the approved compensation band for the role. Requests for revisions outside the band require HR Director approval and cannot be granted by hiring managers alone. All negotiation must be conducted through HR.

5. Onboarding Process

5.1 Philosophy of Onboarding

Onboarding is not administrative processing — it is the beginning of the employment experience, and it sets the tone for the entire relationship. Research consistently shows that employees who experience structured, engaging onboarding are 82% more likely to remain with the organization after one year (source: Brandon Hall Group). Our onboarding is designed to help new employees feel welcomed, informed, and capable from Day One.

5.2 Pre-Joining Activities

After offer acceptance, HR initiates the pre-joining sequence:

- Digital Welcome Pack: Sent within 24 hours of offer acceptance. Contains company overview, day-one logistics, and document checklist.
- Document Collection: Employee submits identity documents, educational certificates, previous employment documents, and banking details via the secure HR portal.
- IT Provisioning: Laptop, email account, and system access provisioned before Day One.
- Buddy Assignment: Every new joiner is assigned a peer Buddy from their team who is available for informal guidance during the first 90 days.

5.3 Day One & Week One Activities

Timeline	Activity
Day 1 Morning	Welcome meeting with HR. Office/setup tour. Meet manager and team. Complete HR paperwork.
Day 1 Afternoon	Orientation session: Company overview, values, policies, tools, and systems.
Days 2-3	Function-specific induction: Role context, team structure, current projects, tools used.
Days 4-5	Shadowing sessions with key stakeholders. First 1:1 with manager. Goal-setting discussion begins.
End of Week 1	30-60-90 Day Plan drafted collaboratively by employee and manager.

5.4 The 30-60-90 Day Plan

Every new hire has a 30-60-90 Day Plan created with their manager in the first week. This plan defines:

- 30 Days: Learning objectives — what the employee needs to understand about the role, team, and organization.
- 60 Days: Contribution objectives — first meaningful outputs and early wins.
- 90 Days: Performance objectives — initial targets and relationship-building goals.

The 30-60-90 Day Plan is reviewed at each milestone. Performance against the plan is a key input into the probationary period assessment.

6. Employment Types

6.1 Overview

The organization engages individuals under several different employment types, each with distinct characteristics, entitlements, and obligations. Understanding which type applies to you is fundamental to knowing your rights and responsibilities. Below is a comprehensive description of each type.

Critical Reminder

Employment type is determined by the terms of the engagement — not by what an individual prefers to be classified as. Misclassification of employment type is a legal risk and will be corrected by HR if identified.

6.2 Full-Time Permanent Employment

Definition

A full-time permanent employee is engaged on an indefinite basis for the standard weekly hours defined by the organization (typically 40 hours per week across 5 working days). The employment has no predetermined end date and continues until terminated by either party in accordance with this policy and applicable law.

Key Characteristics

- No fixed end date to the employment.
- Access to the full suite of employee benefits (health, retirement, leave, wellness, etc.).
- Subject to the full performance management cycle.
- Eligible for all internal promotion and transfer opportunities.
- Notice period obligations apply on both sides.

Notice Period Requirements — Full-Time Permanent

Employment Stage	Notice Period
During Probation	2 weeks' notice by either party.
Post-Confirmation (IC – Manager)	30 days' notice by either party.
Post-Confirmation (Senior Manager – Director)	60 days' notice by either party.

Post-Confirmation (VP and above)	90 days' notice by either party.
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Real-World Example: Full-Time Employment Notice Period in Practice

An operations analyst submitted her resignation with immediate effect, citing personal reasons. Her contract specified 30 days' notice. HR worked with her manager to negotiate a 15-day exit, waiving the remaining 15 days as a goodwill gesture. This required HR Director approval and was documented formally. Importantly, her benefits continued through the last working day, not the notice period end date, as the notice was partly waived.

6.3 Part-Time Permanent Employment

Definition

A part-time permanent employee is engaged on an indefinite basis for fewer than the standard weekly hours. Part-time arrangements may involve fewer days per week, reduced hours per day, or a combination of both. Part-time employees have the same legal rights as full-time employees on a pro-rata basis.

Key Characteristics

- Compensation, leave entitlements, and benefits are pro-rated to the proportion of full-time hours worked.
- Subject to the same performance management standards as full-time employees.
- Part-time employees may not be treated less favorably than comparable full-time employees simply due to their working pattern.
- Conversion to full-time: Part-time employees may apply for full-time roles through the standard internal mobility process.

Requesting a Part-Time Arrangement

Current full-time employees may request a transition to part-time working. The request process:

10. Submit a written request to the manager and HR at least 30 days before the requested effective date.
11. State the proposed working pattern and rationale.
12. Manager and HR assess operational feasibility within 10 business days.
13. If approved, a contract variation letter is issued within 5 business days of the decision.
14. If declined, HR will provide written reasons and offer to discuss alternative arrangements.

Real-World Example: Part-Time Working — New Parent Accommodation

A content strategist returning from maternity leave requested a 3-day work week for 6 months. Her manager's initial concern was coverage on her absent days. HR facilitated a workload redistribution discussion with the team, and a temporary additional resource was allocated. The arrangement was documented as a contract variation. After 6 months, she transitioned back to full-time. The team reported no measurable impact on output during the period.

6.4 Fixed-Term Contract Employment

Definition

A fixed-term contract employee is engaged for a specific defined period — tied to a project, a seasonal need, a temporary vacancy (such as maternity leave cover), or a specific deliverable. The contract includes a predetermined end date or a condition that triggers the end of employment (such as the completion of a project or the return of the substantive post-holder).

Key Characteristics

- Contract specifies a precise end date or end condition.
- Fixed-term employees have the same legal protections as permanent employees during their engagement.
- Fixed-term employees may not be treated less favorably than permanent employees in comparable roles.
- Fixed-term contracts may be extended, but repeated extensions may create an implied right to permanency under applicable employment law.
- Conversion to permanent employment: Fixed-term employees who have been engaged for a continuous period of 24 months or more will be reviewed for conversion to permanent status.

End of Fixed-Term Contract

The natural end of a fixed-term contract is not a termination in the standard sense — it is the expiry of an agreed arrangement. However, the organization will:

- Notify the employee at least 30 days before the contract end date of whether it will be extended or will expire.
- Conduct an exit meeting to confirm final pay, document submission, and access revocation.
- Provide a service letter confirming the period of engagement and role held.

Real-World Example: Fixed-Term Contract — Maternity Cover

A senior designer joined on a 9-month fixed-term contract to cover a colleague's maternity leave. Three months before the contract end, her manager identified a new, separate vacancy in the design team. She applied through the standard internal recruitment process and was offered the permanent role. Her fixed-term contract was terminated by mutual consent, and a new permanent contract was issued. Her continuous service was preserved.

6.5 Temporary Employment

Definition

Temporary employees are engaged for a short-term need — typically less than 3 months — to address urgent operational demands, unplanned absences, seasonal peaks, or interim coverage. Temporary employees may be hired directly or engaged through a staffing agency.

Key Characteristics

- Engagements typically range from 1 week to 3 months. Extensions beyond 3 months require HR approval.
- Temporary employees receive basic statutory entitlements. They do not have access to the full employee benefits suite during short engagements.
- Temporary employees engaged directly (not through an agency) are on the organization's payroll and subject to all conduct and performance standards.
- Agency temps are employed by the agency; the organization provides direction on work assignment only.

6.6 Internships

Definition

An internship is a structured, time-bound learning engagement designed to give students, recent graduates, or career changers exposure to the professional workplace. Interns are engaged for a defined period (typically 2 to 6 months) and assigned to a host department with a dedicated supervisor.

Types of Internships

Type	Description
Summer Internship	8-10 weeks during academic summer break. Campus-recruited.
Industrial Training / Placement	6-12 months for students completing mandatory industry training.
Graduate Internship	3-6 months for recent graduates exploring a career path.
Project Internship	Deliverable-linked. Intern engaged for a specific project scope.

Internship Standards & Obligations

- All interns receive a stipend. Unpaid internships are not permitted.
- Every intern has a designated supervisor who conducts structured weekly 1:1 meetings.
- Interns are assigned a defined project scope — not open-ended or undefined work.
- Interns complete a formal performance review at mid-point and end of engagement.
- High-performing interns may be considered for the Pre-Placement Offer (PPO) programme leading to full-time employment.
- Interns are bound by confidentiality, code of conduct, and data protection obligations.

Real-World Example: Internship to Full-Time — PPO Programme

In 2023, a summer intern in our data analytics team delivered a predictive model that improved client reporting accuracy by 23%. At her end-of-internship review, she received a Pre-Placement Offer for a full-time analyst role upon graduation. She returned 6 months later as a permanent employee, already familiar with the team, systems, and culture. Her onboarding time was reduced by approximately 40%.

6.7 Apprenticeships

Definition

An apprenticeship is a structured programme that combines paid employment with formal learning — typically leading to a nationally recognized qualification. Apprentices are engaged under a specific Apprenticeship Agreement that governs the programme duration, learning objectives, and qualification pathway.

Key Characteristics

- Duration: Typically 12 to 36 months depending on the qualification level.
- Apprentices spend a minimum of 20% of their working time in 'off-the-job' learning.
- Apprentice compensation follows the statutory apprentice pay scale or the company's approved rate, whichever is higher.
- Upon successful completion of the apprenticeship, the employee may apply for a permanent role through the standard internal process. Completion does not guarantee permanent employment but creates a priority consideration.

6.8 Independent Contractors & Consultants

Definition

Independent contractors are self-employed individuals engaged by the organization under a contract for services — not a contract of employment. The key distinction is that contractors are not employees; they are businesses providing services. However, in some jurisdictions, the law may re-characterize a contractor as an employee if the engagement looks like employment in practice.

Engagement Criteria for Independent Contractors

The following criteria must be met to engage an individual as an independent contractor:

- They work for multiple clients, not exclusively for our organization.
- They provide their own equipment and bear their own business expenses.
- They have the right to substitute another individual to perform the work.
- They are not subject to day-to-day management direction — only output direction.
- They invoice for services and are responsible for their own tax and social security obligations.

Legal Warning: Worker Misclassification Risk

Engaging an individual as a contractor when they functionally operate as an employee is illegal in most jurisdictions and exposes the organization to significant tax, social security, and employment law liability. Any proposed contractor engagement must be reviewed by HR and Legal before commencement. When in doubt, the default classification is employee.

7. Probationary Period Policy

7.1 Purpose of the Probationary Period

The probationary period is a defined evaluation phase at the beginning of employment during which both the employer and the employee assess mutual suitability. It is not a punitive mechanism or a period of reduced employment rights. It is a structured, transparent, and supported transition into the role.

The probationary period serves three functions. For the organization, it is an opportunity to verify that the employee can perform the role to the required standard in a real working environment. For the employee, it is an opportunity to confirm that the role, the team, and the culture match their expectations. For the manager, it is a structured framework for providing early support, feedback, and guidance.

7.2 Standard Probationary Period Durations

Role Level / Employment Type	Probation Duration
Individual Contributor (entry to mid)	3 months
Senior Individual Contributor / Specialist	3 months
Manager / Team Lead	6 months
Senior Manager / Director	6 months
VP and above	6 months
Intern	No probation — governed by internship agreement
Fixed-Term Contract (under 6 months)	1 month
Fixed-Term Contract (6 months or more)	3 months

7.3 Manager Obligations During Probation

The manager's role during the probationary period is critical. Probationary failures that reach the termination stage without prior structured support and feedback are a manager failure, not just an employee failure. Managers are required to:

- Conduct structured check-in meetings at Week 2, Month 1, and Month 2 (or Month 3 for 6-month probations).

- Provide documented written feedback at each check-in.
- Set clear, written, measurable objectives at the start of the probationary period.
- Identify performance concerns early and raise them promptly — not at the end of the probationary period.
- Escalate to HR if concerns arise mid-probation that may affect confirmation.

7.4 Employee Rights During Probation

Employees on probation have the following rights:

- To receive regular, specific, constructive feedback from their manager.
- To know the criteria against which they are being assessed.
- To raise concerns about the role, the team, or the support they are receiving without fear of penalization.
- To request a meeting with HR at any point during the probationary period.
- To be treated with the same dignity and professional respect as confirmed employees.

Important: Probation Does Not Equal Reduced Rights

Employees on probation retain all statutory employment rights from Day One of employment, including protection from discrimination, unlawful deduction of wages, and the right to a safe working environment. Probation affects the confirmation decision — it does not create a class of reduced-rights employees.

7.5 Mid-Probation Performance Concerns

If a manager identifies a performance or conduct concern during the probationary period, the following process applies:

15. Manager documents the concern and shares it with the employee in a structured conversation.
16. HR is notified within 3 business days of the concern being identified.
17. A Probationary Support Plan is created — a short-term targeted action plan specifying the concern, the expected improvement, the timeline, and the support to be provided.
18. Progress against the Probationary Support Plan is reviewed weekly.
19. At the end of the agreed timeline, the manager and HR make a determination: continue (with or without plan), extend probation, or initiate termination.

7.6 Extension of Probationary Period

Probation may be extended once, for a maximum period equal to the original probation duration, in the following circumstances:

- The employee has been absent for a significant portion of the probationary period (illness, leave), making it impractical to assess performance fairly.
- A Probationary Support Plan is in place and progress has been made but is not yet sufficient for confirmation.
- A significant role change or restructuring has occurred during the probationary period, requiring a reset of objectives.

Extension of probation requires written approval from HR. The employee must be notified in writing at least 5 business days before the original probation end date.

Real-World Example: Probation Extension — Fair and Supported

A new recruiter joined during the organisation's peak hiring season. In her second month, she was signed off sick for three weeks. Upon return, her manager and HR agreed to extend her probation by one month to ensure she had a fair and uninterrupted assessment period. The extension was communicated to her positively — framed as time to demonstrate her capabilities without the pressure of an impending deadline. She was confirmed at the end of the extended period.

7.7 Termination During Probation

If an employee's performance or conduct during the probationary period is unsatisfactory and a Probationary Support Plan has not resolved the concern, the organization may terminate the employment before the end of the probation period. Probationary termination is subject to the following requirements:

- HR must be involved in and approve the termination decision before communication to the employee.
- The employee must have been given documented feedback about the concern and a fair opportunity to improve.
- The notice period applicable during probation must be honored or payment in lieu made.
- The termination must not be linked — directly or indirectly — to a protected characteristic (gender, age, ethnicity, disability, religion, etc.).
- A termination letter must be issued on the same day as the conversation.

Critical: Discriminatory Probationary Termination

Terminating an employee's probation shortly after they disclose a pregnancy, disability, or other protected characteristic — even if framed as a performance issue — exposes the organization to significant legal risk. All probationary termination decisions must be reviewed by HR Legal before communication. If there is any temporal proximity between a protected disclosure and a termination decision, HR must conduct an additional fairness review.

8. Confirmation Process

8.1 What Confirmation Means

Confirmation is the formal decision to transition an employee from probationary to permanent status. It is not automatic — it is an active decision based on structured assessment. It signals the organization's confidence in the employee's ability to meet the performance, conduct, and cultural standards of the role on an ongoing basis.

Confirmation is not simply the passage of time. An employee whose probationary period has elapsed without a formal confirmation decision remains in probationary status until that decision is made. Managers and HR are jointly responsible for ensuring that confirmation does not default to expiry of time.

8.2 Confirmation Assessment Criteria

Confirmation is assessed across five dimensions:

Dimension	Assessment Question
Role Performance	Has the employee met the objectives defined in their 30-60-90 Day Plan and any other agreed targets?
Competency Demonstration	Has the employee demonstrated the technical and behavioral competencies required for the role?
Attendance & Reliability	Has the employee maintained an acceptable attendance record and been reliable in their commitments?
Cultural Contribution	Has the employee engaged constructively with the team, embodied our values, and contributed positively to the culture?
Learning & Growth	Has the employee shown the capacity and willingness to learn, receive feedback, and improve?

8.3 The Confirmation Process — Step by Step

20. Notification: HR reminds the manager 4 weeks before the probation end date to initiate the confirmation assessment.

21. Self-Assessment: The employee completes a structured self-assessment form, reflecting on their performance across the five dimensions.
22. Manager Assessment: The manager independently completes the same assessment form.
23. Confirmation Meeting: The manager and employee meet to discuss both assessments. This is a two-way conversation, not a lecture.
24. HR Review: HR reviews the assessment and approves the confirmation, extension, or termination recommendation.
25. Decision Communication: The employee receives written confirmation of the outcome within 2 business days of the meeting.

8.4 Confirmation Outcomes

Outcome	Consequences & Actions
Confirmed	Employment transitions to permanent status. Letter of Confirmation issued. Salary review may apply.
Extended	Probation extended (once) with a defined Probationary Support Plan. New review date set.
Termination	Employment ended. Notice period honored. Termination letter issued.

8.5 The Confirmation Letter

A Confirmation Letter is a formal document issued to every confirmed employee. It includes:

- Confirmation of permanent employment status effective from the stated date.
- Revised notice period obligations (if applicable post-confirmation).
- Any salary revision or benefit changes effective from confirmation.
- Updated terms that supersede probationary conditions.

Real-World Example: Confirmation with a Salary Review

A junior data analyst completed her 3-month probation. At her confirmation meeting, her manager noted that her performance had significantly exceeded expectations — she had delivered work typically assigned to mid-level analysts. HR approved a 12% salary increase at confirmation, citing the misalignment between her grade at hire and her demonstrated performance. This practice — reviewing compensation at confirmation where significant overperformance is documented — is embedded in our confirmation process as a fairness mechanism.

8.6 Post-Confirmation Employment Protections

Upon confirmation, the employee transitions to the full suite of employment protections, including:

- Right to formal performance management process (not summary probationary termination) for any future underperformance.
- Full notice period entitlements (as per role level — see Section 6).
- Eligibility for redundancy entitlements if the role is eliminated.
- Access to the formal grievance and disciplinary procedures.
- Full employee benefit entitlements (any benefits previously subject to confirmation are now activated).

9. Transfer & Internal Mobility

9.1 Internal Mobility Philosophy

We believe that talent should flow to where it creates the most value — for the employee and the organization. Internal mobility is actively encouraged and structurally supported. An employee who grows into a new role within the organization brings accumulated knowledge, cultural fluency, and reduced onboarding time. Internal mobility is not a privilege — it is a strategic tool and a career development right.

9.2 Eligibility for Internal Transfer

Criterion	Requirement
Minimum tenure in current role	12 months (exceptions require HR BP approval and current manager consent)
Performance status	Must not be on an active Performance Improvement Plan (PIP)
Probation status	Must be confirmed (not within active probationary period)
Notice to current manager	Minimum 30 days' notice before expected transfer date

9.3 Geographic Transfers

Transfers between offices or cities may be initiated by the employee or the organization. Organizational-initiated transfers require the employee's consent unless the employment contract contains a mobility clause. Relocation support (travel, housing assistance, and settling-in allowance) is provided in accordance with the Relocation Policy.

10. Re-Employment Policy

10.1 Policy on Former Employees

Employees who left the organization in good standing — meaning without termination for cause, and without burning bridges — are eligible to be rehired. We recognize that people sometimes leave for legitimate reasons (career exploration, relocation, personal circumstances) and return having grown significantly. Rehiring former employees carries known cultural and institutional advantages.

10.2 Re-Employment Conditions

- Former employees who left voluntarily and were in good standing are eligible after a minimum absence of 6 months.
- Former employees who were terminated for cause are not eligible for re-employment unless the case has been reviewed and cleared by HR Director.
- All re-employment candidates go through the standard hiring process.
- Prior service is not automatically recognized for benefit entitlement purposes. HR will review on a case-by-case basis.

Real-World Example: Boomerang Employee Success

A senior product manager left to join a startup. 18 months later, the startup was acquired and she sought to return. She went through the full interview process — no shortcuts were made. She was rehired at a senior level commensurate with her expanded experience. Her prior institutional knowledge halved her effective ramp-up time, and she delivered her first major product initiative within 4 months.

11. Employee Classification & Grade Structure

11.1 The Grade Structure

The organization uses a structured grade framework to ensure consistency in role evaluation, compensation, career pathing, and authority levels. Each grade corresponds to a defined scope of responsibility, decision-making authority, and compensation band.

Grade / Level	Scope of Responsibility
Grade 1-2: Analyst / Associate	Entry-level roles. Guided, task-focused delivery. Learning orientation.
Grade 3-4: Specialist / Senior Specialist	Functional expertise. Increasing independence. Project contribution.
Grade 5-6: Lead / Senior Lead	Team or domain lead. Mentoring others. Owns projects end-to-end.
Grade 7-8: Manager / Senior Manager	People management. Departmental delivery. Stakeholder relationship management.
Grade 9-10: Director / Senior Director	Cross-functional leadership. Strategic contribution. P&L or major budget ownership.
Grade 11+: VP / C-Suite	Executive leadership. Organizational strategy. Board-level accountability.

11.2 Promotion vs. Regrading

A promotion occurs when an employee moves to a higher grade level, typically following a formal performance review and calibration process. A regrade occurs when an existing role is re-evaluated and found to be misaligned to its current grade — not due to changed performance, but due to changed scope or market benchmarking. Both require HR approval and are documented with a contract variation letter.

12. Compliance, Legal & Statutory Requirements

12.1 Employment Law Compliance

All employment terms in this policy are designed to comply with applicable employment legislation. The organization monitors regulatory changes and updates this policy accordingly. Where statutory minimum standards (notice, leave, pay, etc.) exceed what this policy provides for, the statutory standard applies automatically.

12.2 Key Legal Protections — Summary

Legal Area	Compliance Commitment
Equal Employment Opportunity	No discrimination in hiring, compensation, promotion, or terms on protected grounds.
Minimum Wage Compliance	All employees receive at least the statutory minimum wage applicable in their jurisdiction.
Working Hours Regulation	Standard hours, overtime, and rest periods comply with applicable working time legislation.
Data Protection	All employee personal data is handled in accordance with applicable data protection law (e.g., GDPR, IT Act).
Health & Safety	The organization maintains a safe working environment in compliance with health and safety legislation.
Right to Work	All employees must have verified right to work documentation before commencing employment.

12.3 Right-to-Work Verification

The organization is legally required to verify that every employee has the legal right to work in the jurisdiction where they are employed. This verification must occur before the employee's first day of work — not retroactively. HR retains copies of right-to-work documentation on file. Failure to conduct right-to-work checks may result in significant financial penalties for the organization and potential criminal liability for responsible individuals.

12.4 Equal Opportunity Statement

The organization is an equal opportunity employer. All employment decisions — including hiring, promotion, compensation, discipline, and termination — are made without regard to race, ethnicity, national origin, gender, gender identity, sexual orientation, age, disability, religion, marital status, or any other characteristic protected by applicable law. Employees who experience or witness discrimination are encouraged to report it through the formal grievance channel or the anonymous HR portal.

13. Policy Violations & Disciplinary Process

13.1 Scope

This section describes the process that applies when an employee is believed to have violated this policy or any other HR policy during their employment. The disciplinary process is designed to be fair, consistent, and corrective — not punitive. The goal is to address the behavior, protect the organization, and where possible, support the employee in returning to good standing.

13.2 Types of Misconduct

Category	Description & Consequence
Minor Misconduct	First-time or isolated policy violations, lateness patterns, minor procedural failures. Handled through coaching and informal warning.
Serious Misconduct	Repeated violations, significant policy breaches, insubordination, harassment. May result in formal written warning or final warning.
Gross Misconduct	Fraud, theft, violence, serious data breach, criminal conduct, severe harassment. May result in summary dismissal.

13.3 The Disciplinary Process

26. Investigation: HR appoints an investigating officer who is impartial and not in the direct reporting line. The investigation includes interviews and document review.
27. Notification: The employee is informed in writing that a disciplinary process has been initiated, the nature of the allegation, and their right to be accompanied.
28. Hearing: A formal disciplinary hearing is conducted. The employee has the right to present their case and be accompanied by a trade union representative or colleague.
29. Decision: A decision is made by the designated decision-maker (not the investigator) within 5 business days.
30. Outcome Letter: A formal written outcome letter is issued.
31. Right of Appeal: The employee may appeal the outcome within 10 business days of receiving the outcome letter.

14. Employee Acknowledgement

14.1 Purpose of Acknowledgement

By signing this acknowledgement, you confirm that you have received, read, and understood the Employment Terms Policy. This signature does not indicate agreement with every provision — it indicates that you have been made aware of the terms that govern your employment and that you know where to raise questions or concerns.

If any element of this policy is unclear or if you have questions, you are encouraged to speak with HR before signing. You have the right to take a reasonable amount of time to review this document — typically 5 business days. Signing under time pressure or without adequate understanding defeats the purpose of this document.

Questions About This Policy?

Contact your HR Business Partner or write to hrpolicies@company.com. All enquiries are handled with confidentiality and responded to within 3 business days.

Employee Full Name:	
Employee ID:	
Designation:	
Employment Type:	
Date of Joining:	
Signature:	
Date:	

Human Resources Department | Confidential | Not for External Distribution